

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted

9/16/2023 6:10 PM

Entry Number

5,791

* Indicates a required field

Your information

Complainant 1

Your name

Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email

constantine.mars@gmail.com

Your telephone number

(408) 518-0088

Your address

PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge

Andrea E Flint

Or Name of court commissioner or referee

Court Level

Superior Court

Court of Appeal District

County

Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

06/29/2023, 07/31/2023, 08/01/2023, 09/05/2023, 09/07/2023, 09/13/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

[Please see attached complete Complaint PDF and two PDF files with Evidences (color and text)]

Kostiantyn Mars

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Commission on Judicial Performance

455 Golden Gate Avenue, Suite 14400

San Francisco, CA 94102

RE: COMPLAINT AGAINST JUDGE ANDREA E. FLINT - CASE 22FL003144, SUPERIOR COURT OF CALIFORNIA, SANTA CLARA COUNTY
(UPDATED WITH THE MOST RECENT EVIDENCE FROM 09/13/2023)

Dear Members of the Commission on Judicial Performance,

I am writing to file a formal complaint against Judge Andrea E. Flint, who presides over Case 22FL003144 in the Superior Court of California, Santa Clara County. I am deeply concerned about Judge Flint's conduct throughout this case, which has resulted in a grave miscarriage of justice and poses a significant threat to the safety and well-being of my minor child.

Judge Flint's actions in this case have been characterized by extreme prejudice, a repetitive refusal to recuse for cause, and a blatant disregard for the evidence and witness statements presented. The following issues highlight the severity of the misconduct:

1. **Extreme Prejudice and Bias:** Throughout the proceedings, Judge Flint has displayed a clear and undeniable bias against me, the petitioner in this case. Her actions and demeanor in the courtroom have consistently favored the respondent, jeopardizing the fairness of the proceedings, resulting in extremely biased orders that completely ignore evidence, witness statements and facts of the case. Those occurred on: 06/29/2023, 07/31/2023, 08/01/2023, 09/07/2023, 09/13/2023
2. **Repetitive refusal to Recuse:** Despite multiple pieces of evidence pointing to Judge Flint's extreme bias against me, the petitioner, she has repeatedly refused to recuse herself for cause. Her impartiality has been compromised, and this repetitive refusal is a clear violation of the principles of

justice and due process.

Those occurred on 08/09/2023, 09/05/2023, 09/07/2023, 09/12/2023, 09/13/2023.

3. Endangering the Life of a Minor Child: Judge Flint's recent orders on June 29, 2023, pose a direct threat to the life and well-being of my son. These orders effectively force me to abandon my child and relinquish all documents, enabling the respondent to abduct my son outside of the United States to Ukraine, which is currently experiencing a state of conflict and war. According to UNICEF, more than thousand of children died due to war in Ukraine. The respondent has made explicit threats of abduction of my son to Ukraine, attempted to cancel my son's Green Card and steal my son's documents. Respondent was unable to execute abduction solely because she never had any child's documents due to her extremely low credibility, proven record of previous abduction attempts (2019 – 2020), and past mental health issues with bipolar disorder and aggression against my child and granny, defenseless 95 years old senior woman with disabilities, who respondent put into terminal condition by multiple attacks and then kicking defenseless elderly woman from home on eyes of my son. Despite all these facts, supported by clear evidence and witness statements, Judge Flint made orders that give full custody to respondent and place my child in grave danger.

4. Removal of Emergency Screening Recommendations: Inexplicably, Judge Flint have removed critical emergency screening recommendations from court orders, thereby endangering the well-being of my child and denying right of the child for protection from abuse by Respondent and restoring healthy contact with father.

5. Refusal to Assign Minor Counsel and Child Abduction Prevention Orders: Judge Flint has repeatedly refused to assign minor counsel and grant child abduction prevention orders, despite the clear and immediate need for such protective measures, due to emergency screener recommendations and multiple evidence of previous abduction attempts and threats of Respondent to abduct my son outside of the United States.

6. Refusal to Subpoena Emergency Screener: Despite the importance of their testimony and expertise, Judge Flint refused to subpoena to the emergency screener during hearing 06/29/2023 and wasted time of emergency screener on false allegations instead of safety and best interest of the child, depriving us of valuable information that could impact child safety and wellbeing.

7. Granting false allegations: Despite clear evidence and statements of all parties, including emergency screener, Judge granted false allegations against me on 06/29/2023 and turned child abduction prevention hearing into talk about ungrounded false allegations misleading Court from matter of the hearing 06/29/2023 that was Child Abduction Prevention, that further undermined the credibility and fairness of the proceedings.

There is strong reason to believe that the respondent's family, who arrived in the United States with substantial amounts of cash, has exerted improper influence on the proceedings. This influence may have contributed to the extreme bias demonstrated by Judge Flint.

8. False Statements on Record: There have been multiple instances where false statements were made by Judge Flint during court proceedings on 09/07/2023, 08/01/2023, 07/31/2023, 06/29/2023, which were subsequently recorded in the court records. These falsehoods have further eroded trust in ability of Judge Flint to oversee this case objectively.

9. Threats and Coercion: Judge Flint threatened me during a hearing 09/07/2023, stating that "nobody will hear you and there will be no records - because there is no court reporter" in response to my request for recusal, stated on record during hearing.

During hearing 06/29/2023 Judge Flint ordered to block all contact with my child by ordering only professionally supervised visitations (that already last for more than year without any reasons for that, and that I cannot afford due to my extreme financial hardship), then Judge threatened me that "you have

to pay for your mistakes”. This amounts to intimidation and coercion.

10. Inappropriate Punishment: By denying a request for a continuance due to a medical emergency on 07/31/2023, Judge Flint have placed an unjust and punitive burden on me, endangering my well-being and compromising my ability to fully participate in the proceedings due to severe pain that I suffered during hearing. Orders that Judge Flint granted on that hearing cast significant doubt on Judge’s ability to provide an impartial and fair hearing, considering that some of them go against California Law and cannot be executed.

11. Falsification of Court Records: Judge Flint has been involved in the falsification of court records, including the removal of emergency screener recommendations, removing statements made on record during hearing from docket and minute orders. This undermines the integrity of the court system and calls into question the legitimacy of the orders issued.

12. Unjust Denial of Motions: Judge Flint unjustly denied motions to hold the respondent in contempt of court and disqualify opposing counsel for their violation of court orders, impermissible conflicts of interest, and improper influence on emergency screener and supervisors, that led to blocking contact with my child, break in supervised visitations and put unnecessary bias in emergency screener recommendations after screener was under pressure of extremely inappropriate messages sent by Respondent and her attorney. Still, Judge Flint refused to discipline Respondent and her attorney, and made multiple orders solely in their favor.

13. Manipulation of Court Proceedings: Judge Flint has manipulated court proceedings by omitting court reporters from hearings, scheduling our case last to avoid witnesses from other cases, and consistently ignoring my requests, including those for recusal stated on record.

Due to the severity and scope of these issues, I urge the Commission on Judicial Performance to take immediate action to investigate Judge Andrea E. Flint's conduct in Case 22FL003144.

It is imperative that Judge Flint be removed from this case to ensure a fair and just resolution that prioritizes the safety and well-being of my minor child.

I understand the importance of a thorough and impartial investigation, and I am willing to provide any additional information or evidence required to support this complaint. The continued involvement of Judge Flint in this case jeopardizes the welfare of my child and undermines public trust in the judiciary.

Thank you for your attention to this matter. I look forward to a prompt and thorough review of this complaint.

Sincerely,

DATED: September 16, 2023

KOSTIANTYN MARS

Pro Per

File Upload

Complaint to Commission on Judicial Performance.pdf

Evidences (in color).pdf

Evidences (all).pdf